

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Diana Murray	Team: Team # 2	CCRB Case #: 201401799	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 02/22/2014 1:12 AM	Location of Incident: Utica Avenue and Montgomery Street	18 Mo. SOL 8/22/2015	Precinct: 71		
Date/Time CV Reported Mon, 02/24/2014 4:34 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 02/24/2014 4:34 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Antoine Gilkes	09869	950494	071 PCT
2. SGT Clifford Louis	02793	927098	071 PCT
3. POF Adeline Thompson	00290	949726	071 PCT
4. Officers			071 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Clifford Louis	Abuse: Sgt. Clifford Louis searched § 87(2)(b)	A . Unsubstantiated
B . Officers	Abuse: Officers searched the car in which § 87(2)(b) was an occupant.	B . Exonerated
C . SGT Clifford Louis	Abuse: Sgt. Clifford Louis issued a summons to § 87(2)(b)	C . Substantiated
D . SGT Clifford Louis	Discourtesy: Sgt. Clifford Louis spoke discourteously to § 87(2)(b)	D . Substantiated
E . POM Antoine Gilkes	Discourtesy: PO Antoine Gilkes acted discourteously toward § 87(2)(b)	E . Substantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On February 24, 2014, § 87(2)(b) filed this complaint with the CCRB via phone (Enc. 9a – 9b). On February 22, 2014, at 1:12 a.m., § 87(2)(b) was driving near the intersection of Montgomery Street and Utica Avenue, in Brooklyn, when he was stopped by plainclothes officers in an unmarked vehicle. The following allegations resulted:

- **Allegation A: Abuse of Authority: Sgt. Clifford Louis searched** § 87(2)(b)
§ 87(2)(g)
- **Allegation B: Abuse of Authority: Officers searched the car in which** § 87(2)(b) **was an occupant.**
§ 87(2)(g)
- **Allegation C: Abuse of Authority: Sgt. Clifford Louis issued a summons to** § 87(2)(b)
- **Allegation D: Discourtesy: Sgt. Clifford Louis spoke discourteously to** § 87(2)(b)
- **Allegation E: Discourtesy: PO Antoine Gilkes acted discourteously toward** § 87(2)(b)
§ 87(2)(g)
- § 87(4-b) § 87(2)(g)

§ 87(2)(b) declined to mediate.

Results of Investigation

Video Footage

§ 87(2)(b) provided approximately 12 minutes of video footage to the CCRB, which he filmed on his cell phone during the course of the incident (Enc. 10a – 10b). The video footage is equipped with audio. § 87(2)(g)

- The first seven minutes of the video footage is § 87(2)(b) sitting in his vehicle alone. An officer, identified as Sgt. Clifford Louis, is heard stating his badge number, “2793,” and informing § 87(2)(b) that he pulled him over for tinted windows. Simultaneously, PO Gilkes is seen standing at the driver’s window handing § 87(2)(b) a folded summons.
- Sgt. Louis states to § 87(2)(b) “Listen, we could have used our discretion not to give you a ticket, but you are gonna be an idiot.” § 87(2)(b) responds, “Right, the only thing I did is ask you for your badge number.”
- Sgt. Louis can be heard stating, “When we smell marijuana in the car, it’s called an automobile exception, okay?” § 87(2)(b) replied, “So you smell marijuana in this car right now,” and Sgt. Louis responded, “Yes, and some on your breath, yes.”
- Sgt. Louis is heard stating, “All of our suspicions get raised. But you could have been walking out of here, because, you know what I am saying, we checked everything and everything was good. We could have had our discretion not to give you a ticket. You understand what I am saying? For future references when you deal with cops, just remember this day, alright,” and “If you’re cooperative and

do what you gotta do-" § 87(2)(b) interrupted, "So what, I was uncooperative?" Sgt. Louis responded, "Yes." § 87(2)(b) stated, "What did I do that was uncooperative?" Sgt. Louis responded, "You're an idiot." § 87(2)(b) responds, "I am an idiot?" Sgt. Louis responded, "Yea. Because when I first pulled you out of the car, you were kind of pulling away." § 87(2)(b) responded, "I pulled away from you?" Sgt. Louis stated, "Yea, you could have."

- PO Gilkes, the only officer seen on camera, is seen reaching into the driver's side window with his right hand. He smacks the phone with the back of his hand. It is unclear from the video whether he made contact with § 87(2)(b)'s face.

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) old at the time of this incident. He is a 6'1" tall, 170-pound black man with black hair and brown eyes.
- § 87(2)(b)

CCRB Statement

§ 87(2)(b) was interviewed at the CCRB on February 27, 2014 (Enc. 11a – 11k). He provided follow-up information via phone on March 24, 2014 (Enc. 12a). His statements were consistent unless otherwise noted.

On February 22, 2014, at approximately 1:12 a.m., § 87(2)(b) was driving his vehicle, a 2011 four-door silver Infiniti M37 sedan, home from his friend's house. All four of § 87(2)(b)'s windows are tinted, and he does not know whether the tints were legal. While at his friend's house, § 87(2)(b) had been playing poker and people around him were smoking marijuana, but he did not smoke marijuana himself.

While driving, § 87(2)(b) obeyed all traffic laws, did not speed, signaled at the light, abided by the double yellow lines, and did not drive recklessly. He observed a silver Impala sedan, license plate § 87(2)(e), § 87(2)(b) traveling northbound on Utica Avenue. Three plainclothes officers were inside of the vehicle, staring at § 87(2)(b). Upon approaching the intersection of Montgomery Street and Utica Avenue, § 87(2)(b) pulled over to wait for the officers, as he had observed them make a U-turn in the direction he was headed, and anticipated that he would be stopped.

The silver Impala pulled up behind him and three plainclothes officers exited. PO Adeline Thompson, identified via investigation and described as a 5'5" to 5'7" light-skinned black or Hispanic woman in her mid-20s to early 30s exited the passenger seat of the police vehicle and approached the passenger's side of § 87(2)(b)'s vehicle. PO Antoine Gilkes, identified via investigation and described as a 6'2" to 6'5", 200 to 215 pound black man in his late 30s, exited the driver's seat of the vehicle and approached the driver's side of § 87(2)(b)'s vehicle. Sgt. Clifford Louis, identified via investigation and described as a 5'8" to 5'11", husky light-skinned black man in his mid-30s to early 40s, exited the back seat of the police vehicle and approached the rear driver's side of § 87(2)(b)'s vehicle.

§ 87(2)(b) did not make any movements as the officers approached his vehicle, with the exception of possibly rolling down the windows. He did not reach toward the side panel of his vehicle or toward the ground, and he did not attempt to retrieve his paperwork prior to the officers' arrival at his vehicle. § 87(2)(b) did not recall whether he already had all four windows rolled down, or whether the officers instructed him to roll the windows down.

§ 87(2)(b) provided his information to PO Gilkes upon his first request. PO Thompson made a comment about smelling marijuana. PO Gilkes instructed § 87(2)(b) to exit the vehicle and he immediately complied. PO Gilkes escorted § 87(2)(b) to Sgt. Louis, who instructed him to put his hands on the roof of his vehicle and spread his legs. § 87(2)(b) complied. During his phone statement, § 87(2)(b) noted that Sgt. Louis did not think his legs were spread far enough, so Sgt. Louis kicked § 87(2)(b).

§ 87(2)(b)'s legs to the side a single time, causing them to spread further. § 87(2)(b) was wearing jeans and a light shirt. Sgt. Louis reached his hand inside of § 87(2)(b)'s right front pants pocket and removed keys and lip balm. He then entered his left pocket, which did not contain any items. Sgt. Louis did not frisk § 87(2)(b) prior to entering his pockets. All items removed from his pockets were placed on the roof of the vehicle.

PO Gilkes reached into § 87(2)(b)'s open back driver's side window and removed a baseball bat from the vehicle. § 87(2)(b) was positioned at the rear of his vehicle, facing away from his vehicle and toward Sgt. Louis, who stood in front of him. Sgt. Louis informed § 87(2)(b) that PO Thompson had "smelled marijuana on his breath." § 87(2)(b) informed the officers that they may smell marijuana on his clothing, as he had been with friends who were smoking earlier, but they did not smell it on his breath.

Meanwhile, § 87(2)(b) could hear PO Gilkes and PO Thompson rummaging around in his vehicle. He periodically looked back to see the search, including PO Thompson searching the front passenger area of the vehicle and PO Gilkes searching the driver's seat and the trunk. He did not see the specific areas of the search. The officers searched his vehicle for approximately 20 minutes.

At the conclusion of the search, § 87(2)(b) was placed in his vehicle while the officers returned to their vehicle. After approximately ten minutes, Sgt. Louis approached his driver's window and asked him if he had any questions. § 87(2)(b) asked him for his badge number. Sgt. Louis "went ballistic" and stated, "Okay! I got a ticket for you!" Sgt. Louis went back to his vehicle.

§ 87(2)(b) began recording the incident on his cell phone. § 87(2)(b) positioned his phone against the gear stick, facing the driver's side window. PO Gilkes and Sgt. Louis returned shortly thereafter and handed § 87(2)(b) a summons. Sgt. Louis engaged in an argument with § 87(2)(b) at which point he called him "an idiot."

PO Gilkes appeared to notice § 87(2)(b)'s cell phone. He reached his right hand into § 87(2)(b)'s driver's side window and slapped the phone, causing it to fall from the gear stick. The phone was not damaged. In the process of slapping the phone, PO Gilkes elbowed § 87(2)(b) in the mouth, causing his lip to slightly split. He was uncertain if the physical contact was intentional. § 87(2)(b) did not obtain medical treatment.

§ 87(2)(b)'s friend, identified via investigation as § 87(2)(b) approached the vehicle and spoke to the officers. PO Gilkes told him to back up, but Sgt. Louis walked over and began speaking to him in private. Once the officers left, § 87(2)(b) unfolded the summons and observed that it was issued for reckless driving, an infraction that he denied committing. § 87(2)(b) believes the summons was issued to him because he requested Sgt. Louis' information.

Witness: § 87(2)(b)

- § 87(2)(b) was identified via § 87(2)(b) who provided his contact information to the CCRB.

Phone Statement

§ 87(2)(b) provided a phone statement to the CCRB on April 1, 2014 (Enc. 13a).

At the time of this incident, § 87(2)(b) approached § 87(2)(b)'s vehicle, coming within five feet of it, after observing that § 87(2)(b) had been stopped by officers. § 87(2)(b) arrived at the conclusion of the interaction and did not see officers search § 87(2)(b) or his vehicle and he did not see an officer reach into his vehicle and slap his phone. § 87(2)(b) did not hear an officer call § 87(2)(b) an "idiot."

NYPD Statements:

Subject Officer: SGT. CLIFFORD LOUIS

- *Sgt. Louis was § 87(2)(b) old at the time of this incident. He is a 5'9" tall, 200-pound black man with black hair and brown eyes.*
- *Sgt. Louis worked from 6:15 p.m. on February 21, 2014, to 2:59 a.m. the following day as the 71st Precinct Anti-Crime Sergeant. He was working in plainclothes with PO Gilkes and PO Thompson. All officers were assigned to RMP 524.*

Memo Book

At 1:10 a.m., Sgt. Louis participated in a car stop of a vehicle traveling southbound on Utica Avenue near the intersection of Montgomery Street. At 1:18 a.m., a summons was issued for reckless driving by PO Gilkes and a stop, question and frisk report was prepared for the suspicion of criminal possession of a weapon. ICAD # 1333. A baseball bat was in the center console (Enc. 18a – 18c).

CCRB Statement

Sgt. Louis was interviewed at the CCRB on May 16, 2014 (Enc. 19a – 19f).

At the time of this incident, Sgt. Louis observed § 87(2)(b)'s vehicle driving in the opposite direction of the officers on Utica Avenue. § 87(2)(b) was driving in the officers' lane, head on, and swerved out of their lane to avoid a collision after coming within three feet of the police vehicle.

PO Gilkes, who was driving the police vehicle, initiated the stop of § 87(2)(b)'s vehicle to issue him a summons for reckless driving. As the officers approached § 87(2)(b)'s vehicle, § 87(2)(b) began rolling down the windows and PO Gilkes gestured to Sgt. Louis a predetermined signal that means the officers' safety is in jeopardy or the suspect is possibly in possession of a weapon. Sgt. Louis was later informed that § 87(2)(b) was moving furtively, but he did not observe this firsthand. All of the windows on § 87(2)(b)'s vehicle are tinted and Sgt. Louis could not see his silhouette.

PO Gilkes instructed § 87(2)(b) to step out of the vehicle within seconds of approaching. Sgt. Louis could smell the odor of marijuana emanating from § 87(2)(b)'s vehicle, but he did not see marijuana in plainview and § 87(2)(b) was not smoking at the time of the approach.

§ 87(2)(b) stepped out of the vehicle and was positioned on the driver's side of the vehicle. PO Gilkes decided to frisk § 87(2)(b) based on his observations of the furtive movements immediately upon approaching the vehicle. PO Gilkes frisked § 87(2)(b)'s waistband and down his legs. Sgt. Louis assisted by also frisking § 87(2)(b)'s waistband. Sgt. Louis did not enter any of § 87(2)(b)'s pockets. He felt one bulge, which was determined to be a cell phone via the frisk. For the most part, § 87(2)(b) was physically compliant during the frisk, but at one point, Sgt. Louis had to use his leg to spread § 87(2)(b)'s legs further, as he is trained to do. He did not kick § 87(2)(b).

At some point, Sgt. Louis became aware that there was a bat in the vehicle's center console, as PO Gilkes observed it, but he did not recall when this occurred. The bat was not removed from the vehicle. PO Gilkes searched the vehicle with PO Thompson's assistance. PO Gilkes was on the driver's side and PO Thompson was on the passenger's side. He believed PO Gilkes was searching the vehicle for a weapon. They searched the lungeable, grabbable area, but the trunk and the glove compartment were not searched.

At the conclusion of the vehicle search, the officers returned § 87(2)(b) to his vehicle and returned to their vehicle to issue § 87(2)(b) a summons. It was determined that § 87(2)(b) would be summonsed immediately upon stopping his vehicle. Prior to returning to their vehicle, § 87(2)(b) asked Sgt. Louis for his shield number, which he provided. During his CCRB interview, Sgt. Louis first stated that PO Gilkes already had the summons in his hand at the time of § 87(2)(b)'s request, but later stated that they wrote the summons in the vehicle thereafter.

Sgt. Louis did not state, “Listen we could have used our discretion not to give you a ticket, but you’re gonna be an idiot.” During his CCRB statement, Sgt. Louis replied, “I did say that he was an idiot, but that was it, that’s how he wanted to act, and that’s that.” When asked what specific statement Sgt. Louis made when referring to § 87(2)(b) as an “idiot,” he responded, “No, I said are you going to act like this in public?” Upon reviewing the video footage of this incident, Sgt. Louis confirmed that he called § 87(2)(b) an idiot. He said this in response to § 87(2)(b) being agitated and discourteous toward to the officers and calling them names.

Sgt. Louis noticed that § 87(2)(b) had a phone in his hand during the conversation and Sgt. Louis asked § 87(2)(b) if he was recording, which he responded that he was. No officer made attempts to prevent § 87(2)(b) from recording the interaction and no physical contact occurred between § 87(2)(b) and the officers once § 87(2)(b) returned to his vehicle. Sgt. Louis did not see PO Gilkes slap a cell phone from § 87(2)(b)’s possession. Upon reviewing the video footage, which showed PO Gilkes slapping § 87(2)(b)’s phone from the gear stick, Sgt. Louis stated that he did not recall PO Gilkes slapping the phone at the time of this incident. Now that he has viewed the video, he recalled PO Gilkes touching or swiping the phone in a manner in which he could not describe, at which point Sgt. Louis told PO Gilkes to let § 87(2)(b) record the video.

Subject Officer: PO ANTOINE GILKES

- *PO Gilkes was § 87(2)(b) old at the time of this incident. He is a 6’5” tall, 290-pound black man with black hair and brown eyes.*
- *PO Gilkes worked from 6:30 p.m. on February 21, 2014, to 3:05 a.m. on February 22, 2014, as a 71st Precinct Anti-Crime officer with PO Thompson and Sgt. Louis. He was dressed in plainclothes and assigned to unmarked RMP 594.*

Memo Book

At 1:10 a.m., PO Gilkes stopped a car traveling southbound on Utica Avenue at the intersection of Montgomery for speeding, improper lane change and failure to signal. Upon approaching the vehicle, he smelled a strong odor of marijuana and observed a bat in plainview. He made entries regarding the reckless driving summons issued to § 87(2)(b) (Enc. 14a – 14c).

Stop, Question and Frisk Report

PO Gilkes prepared a stop, question and frisk report for his interaction with § 87(2)(b) (Enc. 15a – 15b). He was suspected of criminal possession of a weapon after performing furtive movements. He was frisked, not searched, and summonsed for reckless driving. § 87(2)(b) was wearing inappropriate attire that could possibly be used to conceal a weapon, and his demeanor was described as “nervous.”

Criminal Summons

§ 87(2)(b) was issued a criminal summons #§ 87(2)(b) for reckless driving (Enc. 16a – 16b). PO Gilkes noted that he observed § 87(2)(b) driving at a high rate of speed, making improper lane changes and failing to use his turn signals while driving southbound on Utica Avenue. He created a hazardous condition.

CCRB Statement

PO Gilkes was interviewed at the CCRB on May 16, 2014 (Enc. 17a – 17f). His statement was consistent with that of Sgt. Louis’ unless otherwise noted.

PO Gilkes confirmed the behavior of § 87(2)(b)’s driving, with the exception of noting that § 87(2)(b) came within two car lengths of the officers’ vehicle before swerving back into his own lane.

Upon approaching, PO Gilkes could smell the odor of marijuana once he exited his own vehicle, as the wind was blowing back toward the officers. PO Gilkes observed § 87(2)(b) first reach toward

the center console, then make furtive movements by fidgeting, reaching, and moving around toward the rear driver's side of the vehicle as officers approached. Initially, PO Gilkes stated he could not see § 87(2)(b)'s hands, but then stated that he could see his hands on his lap, and he was holding his cell phone. Aside from the reaching, he did not do anything else with his body.

When PO Gilkes asked § 87(2)(b) why he was fidgeting to the back of the vehicle, § 87(2)(b) provided no response. § 87(2)(b) confirmed he had been smoking marijuana. PO Gilkes frisked § 87(2)(b) for weapons, as his furtive movements caused PO Gilkes to fear he may be in possession of a weapon. PO Gilkes frisked his waistband only and did not enter any of § 87(2)(b)'s pockets. PO Gilkes handed § 87(2)(b) off to Sgt. Louis, who was standing near the back of the vehicle. Sgt. Louis frisked his legs and arms, and PO Gilkes did not see him enter any pockets, but by this time PO Gilkes had diverted his attention to § 87(2)(b)'s vehicle.

While visually inspecting the vehicle, which had the windows rolled down, PO Gilkes observed a smaller than regulation size bat on the ground in the back seat. PO Gilkes felt around the seats of the vehicle where he observed § 87(2)(b) reaching. He never observed the bat in the center console, and he and PO Thompson never searched the center console, glove compartment, or trunk. He looked in the backseat, where he observed the bat. PO Gilkes then stated that he did not search the vehicle; he just looked around in plainview.

As Sgt. Louis returned § 87(2)(b) to his vehicle, an uninvolved third party, identified as § 87(2)(b) came within a cars length of the interaction.

§ 87(2)(b) requested Sgt. Louis' name or shield number, and he provided it. Sgt. Louis did not become agitated when § 87(2)(b) requested the information. At the time of the request, the summons had not actually been written out, but immediately upon stopping § 87(2)(b) the officers determined he would be summonsed for reckless driving.

§ 87(2)(b) and Sgt. Louis were "going back and forth" after § 87(2)(b) requested Sgt. Louis' information, but PO Gilkes did not hear what they were saying since he was interacting with § 87(2)(b) at the front of the vehicle. He did not hear Sgt. Louis state, "Listen, we could have used our discretion not to issue a summons, but you gonna be an idiot." He did not hear Sgt. Louis state, "You're an idiot."

PO Gilkes suspected that § 87(2)(b) was recording the officers, as he observed his cell phone propped up on the vehicle's gear stick. PO Gilkes thought it was weird that § 87(2)(b) had his phone in his hands the whole time, and then it was suspiciously propped up on his gear shift when the officers returned. He asked § 87(2)(b) what he was doing, and reached his right arm into the window, then "hit" the phone. During his interview, PO Gilkes rephrased his actions as that he "touched the phone" and "tipped the phone." As a result, the phone fell from the gear stick. While reaching into the vehicle, PO Gilkes did not believe he made physical contact with § 87(2)(b) and if so, it was not intentional.

Subject Officer: PO ADELINE THOMPSON

- *PO Thompson was § 87(2)(b) old at the time of this incident. She is a 5'7" tall, 170-pound black woman with brown eyes and brown hair.*
- *On February 22, 2013, PO Thompson worked from 6:30 p.m. to 3:05 a.m. on a 71st Precinct Anti-Crime Team with PO Gilkes and Sgt. Louis. PO Thompson was dressed in plainclothes and assigned to an unmarked vehicle.*

Memo Book

PO Thompson did not have any memo book entries in the lined portions of her memo book (Enc. 20a – 20c). On the fly sheet of her memo book, PO Thompson noted: 02/21/14 car stop at 1:25 a.m. southbound Utica Ave by PO Gilkes. 93Q (stopping a car) and 96 (summons issued).

CCRB Statement

PO Thompson was interviewed at the CCRB on July 1, 2014 (Enc. 21a – 21e). Her statement was generally consistent with that of PO Gilkes’ unless otherwise noted.

PO Gilkes predominantly made the observations that resulted in the stop of § 87(2)(b) s vehicle for reckless driving, but PO Thompson did observe § 87(2)(b) s vehicle driving at a high rate of speed and making lane changes without signaling. She was uncertain whether he came close to causing a collision.

PO Thompson did not make any notable observations while approaching § 87(2)(b) s vehicle. She did not recall whether the officers became suspicious of any other crimes during their immediate interaction with § 87(2)(b) s. She did not recall if he was frisked or searched by any officer. The stop, question and frisk report was presented to PO Thompson, noting that § 87(2)(b) s was frisked and not searched, but this did not aid in PO Thompson’s recollection of whether she observed the frisk.

PO Thompson did not recall whether the vehicle was searched by any officer, including herself. At one point, § 87(2)(b) s informed an unknown officer that he was going to file a complaint. PO Thompson did not recall Sgt. Louis becoming agitated by any of § 87(2)(b) s comments, and she did not hear Sgt. Louis call § 87(2)(b) s an “idiot.” PO Thompson did not hear Sgt. Louis state, “Listen we could have used our discretion not to issue you a ticket, but you are going to be an idiot.”

PO Thompson spent extensive time in the police vehicle running § 87(2)(b) s information for warrants. She did not see PO Gilkes reach into the vehicle and slap the phone from § 87(2)(b) s gear stick. PO Thompson was presented with the salient points of the video footage, none of which she is featured in. The video footage did not aid in her recollection of the incident, as she was likely in the police vehicle when the allegations occurred.

NYPD Documents

SPRINT Report

At 1:10 a.m., the 71st Precinct Anti-Crime team generated a radio transmission regarding a suspicious vehicle at Montgomery Street and Empire Boulevard. The vehicle was stopped in front of 422 Utica Avenue (Enc. 22a – 22c).

Roll Call

The roll call confirmed that PO Gilkes, PO Thompson, and Sgt. Louis were working together on the 71st Precinct Anti-Crime team (Enc. 23a – 23l). PO Charles Arnone and PO Anthony Bottigliere were also on the Anti-Crime Team.

Other Evidence

Video footage was subpoenaed from the surrounding commercial establishments, including Kennedy Fried Chicken and Montgomery Academy, both located on Utica Avenue (Enc. 31a – 31d). The Kennedy Fried Chicken manager contacted the CCRB and stated they did not have video footage. Montgomery Academy confirmed they had video footage and would send it to the CCRB. Upon reviewing the footage, it was determined that the wrong time frame had been provided, and during further conversation it was determined that they no longer had the video footage from the incident date.

Summons for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

Status of Civil Proceedings

- § 87(2)(b) s has not filed a Notice of Claim with the City of New York as of July 10, 2014, nearly three months after the 90-day filing deadline, with regard to the incident (Enc. 27a).

Civilian Criminal History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History

- [§ 87(2)(b)] has filed the following CCRB complaints (Enc. 8a):

- [§ 87(2)(b)]

Subject Officers CCRB History

- PO Gilkes has been a member of the service for three years and this is the first CCRB complaint made against him (Enc. 7c).
- PO Thompson has been a member of the service for four years and there are no substantiated CCRB complaints against her (Enc. 7d).
- Sgt. Louis has been a member of the service for 13 years and there are four substantiated CCRB allegations against him (Enc. 7a – 7b):
 - In CCRB case number 200705078, the Board substantiated a retaliatory summons allegation against Sgt. Louis and recommended Command Discipline. In July 2008, the NYPD instituted Instructions.
 - In CCRB case number 200918246, the Board substantiated stop, frisk and search allegations against Sgt. Louis and recommended Charges. In May 2011, the NYPD instituted Instructions for the frisk and search allegations and declined to prosecute the stop allegation.

Conclusion

Identification of Subject Officers

Sgt. Louis and PO Gilkes acknowledged interacting with [§ 87(2)(b)]. Although PO Gilkes authored the summons issued to [§ 87(2)(b)], Sgt. Louis was the supervisor on scene and the driving force behind the motivation for the summons, [§ 87(2)(g)].

Allegations Not Pleaded

[§ 87(2)(b)] confirmed that he had tinted windows on his vehicle and did not know whether they were legal. [§ 87(2)(g)]

In his follow up statement, [§ 87(2)(b)] alleged that Sgt. Louis kicked him one time to get him to spread his legs. Sgt. Louis confirmed both during his CCRB statement and in the audio-video recording of this incident, that he used his leg to spread [§ 87(2)(b)]'s leg, per NYPD procedure. [§ 87(2)(g)]

[§ 87(2)(b)] denied that he was frisked, and alleged that only Sgt. Louis searched him. PO Gilkes and Sgt. Louis both acknowledge frisking [§ 87(2)(b)] but not searching him. [§ 87(2)(g)]

§ 87(2)(g)

Investigative Findings and Recommendations

Allegation A: Abuse of Authority: Sgt. Clifford Louis searched § 87(2)(b)

§ 87(2)(b) alleged that, absent a frisk, Sgt. Louis entered his right and left front pants pockets, removed his personal items, and set them on the roof of the vehicle. § 87(2)(b) who arrived well after the search allegedly occurred, did not see officers search § 87(2)(b). While PO Gilkes and Sgt. Louis acknowledged that a frisk occurred, all officers denied searching § 87(2)(b) or seeing another officer do so. There was no reference to a search in the video footage and the stop, question and frisk report noted that § 87(2)(b) was not searched.

§ 87(2)(g)

Allegation B: Abuse of Authority: Officers searched the car in which § 87(2)(b) **was an occupant.**

§ 87(2)(b) alleged that PO Thompson and PO Gilkes searched his vehicle, including the trunk, but was unable to further specify the scope of search, due to his vantage point. Despite PO Thompson denying she partook in the search, and PO Gilkes providing elusive responses regarding the scope of the search, Sgt. Louis confirmed the officers searched the vehicle. Furthermore, § 87(2)(b) acknowledged being in the presence of people smoking marijuana. PO Gilkes and Sgt. Louis confirmed they smelled marijuana in § 87(2)(b)'s vehicle, or on § 87(2)(b) which Sgt. Louis is seen stating in the video footage. Therefore, the investigation has credited that the vehicle was searched and § 87(2)(b) who was sitting in his vehicle, likely smelled of marijuana.

Pursuant to the automobile exception, officers may search an entire vehicle, including the trunk, when they detect the odor of marijuana emanating from the vehicle. People v. Valette, 88 AD 3d 461 (1st Dept. – 2011) (Enc. 1a – 1b).

§ 87(2)(g)

Allegation C: Abuse of Authority: Sgt. Clifford Louis issued a summons to § 87(2)(b)

Upon asking for Sgt. Louis' shield number, § 87(2)(b) alleged Sgt. Louis became agitated and had a summons issued to him out of retaliation. § 87(2)(b) received a summons for reckless driving, an infraction he denied committing. Though the officers unanimously denied the notion that the summons was issued out of retaliation, the video evidence provided insight as to the factors preceding the issuance of the summons:

§ 87(2)(b) is pictured sitting alone in his vehicle for approximately seven minutes before Sgt. Louis returns to his passenger's window and recites his badge number, "2793." Simultaneously, PO Gilkes is seen handing § 87(2)(b) a folded summons. Sgt. Louis stated to § 87(2)(b) "Listen, we could have used our discretion not to give you a ticket, but you are gonna be an idiot." § 87(2)(b) responded, "Right, the only thing I did is ask you for your badge number." Sgt. Louis stated, "...But you could have been walking out of here, because, you know what I am saying, we checked everything and everything was good. We could have had our discretion not to give you a ticket..." Furthermore, the

video footage depicts Sgt. Louis stating the stop was motivated by § 87(2)(b)'s tinted windows, and no mention of reckless driving was captured in the video footage.

Abuse of authority is measured by an officer's use of authority to conduct law enforcement actions in bad faith. Taking police action – whether it by an arrest, summons, or search – in a retaliatory manner, such as in response to a request for a shield number, constitutes bad faith, and thus, an abuse of an officer's authority. NYPD v. Napoleoni, OATH Index Nos. 1815-16/00 (Enc. 2a – 2ff).

§ 87(2)(g)

§ 87(2)(g)

Allegation D: Discourtesy: Sgt. Clifford Louis spoke discourteously to § 87(2)(b)

Allegation E: Discourtesy: PO Antoine Gilkes acted discourteously toward § 87(2)(b)

§ 87(2)(b) alleged, and the video footage confirmed, that Sgt. Louis called § 87(2)(b) an “idiot” at least two times during the interaction, and PO Gilkes slapped § 87(2)(b)'s cell phone off of the center console to prevent him from recording the incident. Sgt. Louis reasoned that he called § 87(2)(b) an idiot because § 87(2)(b) was agitated and calling the officers names. PO Gilkes admitted to touching § 87(2)(b)'s phone in some manner, which was determined by the video footage to be a forceful manner, because he knew he was being videotaped.

Officers must be courteous and respectful when interacting with members of the public. Patrol Guide, Procedure 203-09 (Enc. 3a). Officers are not permitted to use discourteous language toward civilians in response to a civilian's use of discourteous language toward an officer. NYPD v. Shepard, OATH Index No. (Enc. 4a – 4k). Furthermore, the use of the word “idiot” constitutes a discourteous and unprofessional statement. NYPD v. Teeter, OATH Index No. 590/01 (Enc. 5a – 5z).

§ 87(2)(g)

§ 87(2)(g)

§ 87(4-b) § 87(2)(g)

§ 87(4-b) § 87(2)(g)

[REDACTED]

Team: 2

Investigator: _____ Diana P. Murray _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date